



Purchase Order

100 Spectrum Center Dr. STE 1030
Irvine, CA. 92618

PH 888-303-6424

DATE

8/13/2025

PO NUMBER

2023.126.2.20

SHIP TO:

Apricus Solar
22755 Yamhill river rd,
Willamina OR 97396

DELIVERY CONTACT:

Sheb Stephens
(910) 728-1037
shebr@evergreenrenewables.com

Seller / Supplier:

American Steel
525 S. Sequoia Parkway
Canby, OR 97013

Price Breakdown	Unit	Description	Subtotal Amounts
		Galvanized I beams and plates – see attached	\$7,515.00
Shipping		Transportation and Shipping	\$650.00
Total Price			\$8,165.00

Scope of Work (SOW)

Delivery 8/28/2025 and delivery must be coordinated 24 hours in advanced with Sheb Stephens (910) 728-1037

THIS PURCHASE ORDER IS SUBJECT TO THE TERMS AND CONDITIONS AS FOLLOWS:

TERMS AND CONDITIONS:

1. **“Purchaser”** is Evergreen Renewables LLC, a Virginia limited liability company, with place of business as listed above in this Purchase Order. **“Seller”** is Maddox Industrial Transformer, LLC., a South Carolina Corporation, with place of business as listed above in this Purchase Order. Each may hereafter be referred to as a **“Party,”** and collectively as **“the Parties.”** **“Materials”** as used herein shall mean solar racking system, layout, installation instructions, and assembly drawings. **“Project”** is the solar site listed above in this Purchase Order or as amended via Change Order for which Purchaser is procuring Materials from the Seller. **“Purchase Price”** shall be the price payable by Purchaser to Seller (collectively **“Total Purchase Price”**). Payment of the Total Purchase Price shall be made as set forth on Exhibit E. **“Change Order”** is a written agreement signed by both Purchaser and Seller setting forth the terms of any change to this Purchase Order or to the Contract. The **“Effective Date”** of this Purchase Order is the latest dated signature appearing below or if any signature is not dated then the date appearing on page 1.
2. This Purchase Order is issued for the purpose of purchasing the Materials for the Projects and securing Total Purchase Price for the Projects for the period starting from the Effective Date of this Purchase Order for three months following Effective Date of this Purchase Order (**“Term”**).
3. Upon signing of the Purchase Order by Seller, Seller shall have accepted the terms and conditions herein and agrees to comply therewith, and Purchaser shall make a deposit in the amount stated in Exhibit E of the Total Purchase Price (the **“First Deposit”**). If Seller does not sign the Purchase Order, Seller’s acceptance of the terms and conditions herein shall be deemed effective upon acceptance of the First Deposit.

Upon receipt of the First Deposit and a written Limited Notice to Proceed (**“LNTP”**) issued by Purchaser, the Seller shall begin compiling layout and assembly drawings, shop drawings and engineering drawings (collectively **“Drawings”**) for Projects identified by the Purchaser in the LNTP according to the specifications and final Project design criteria provided by the Purchaser, as such operating conditions and design requirements are set forth in Exhibit G (collectively **“the Specifications”**). Seller shall deliver the Drawings with any deviation from Purchaser’s Specifications or other requirements clearly identified thereon along with a sales order issued by Seller (**“Sales Order”**) (collectively **“Delivery Time Stamp Documents”**) to the Purchaser for approval within twelve (12) business days following receipt by Seller of the First Deposit, the LNTP, and the Specifications (**“Delivery Time Stamp Documents Due Date”**). The terms of the Sales Order shall not be inconsistent with this Purchase Order, nor materially modify the rights and obligations of the Parties as set forth herein. If there is a contradiction or conflict between the terms of this Purchase Order and any provision of the Sales Order, this Purchase Order shall prevail. If there is a conflict between the terms of this Purchase Order, the Sales Order, and any Change Order, the Change Order shall prevail as to the document it modifies.

At any time during the **Term**, the Purchaser may sign the Drawings, issue a written notice to proceed (**“NTP”**) and sign a Sales Order issued by Seller for the Project, and shall include the Project schedule with the NTP attached. Purchaser may issue the NTP prior to the Delivery Time Stamp Documents Due Date, in which event the NTP shall be effective upon the earlier to occur of delivery of the Drawings and Specifications or expiration of the Delivery Time Stamp Documents Due Date. Upon receipt of all Delivery Time Stamp Documents for the Project and a payment by Purchaser of a second deposit in the amount stated in Exhibit E of the Total Purchase Price for such Project (the **“Second Deposit”**) the Seller shall start production. NTP and Sales Order shall state the exact location for the delivery on the Project site and a date range for delivery of Products based on a **“Structural Foundation/Piles”** lead time as defined in the Sales Order, and a **“Racking Material”** lead time as defined in the Sales Order (**“Delivery Window”**). Delays in receipt of the Second Deposit or any subsequent changes to the Delivery Time Stamp Documents shall result in an equitable extension in the Delivery Window.

4. By acceptance of the First Deposit, Seller accepts all terms and conditions of this Purchase Order and agrees that the Materials will be delivered to the Project site designated in this Purchase Order in strict compliance with the terms and conditions of this Purchase Order. In the event Purchaser cancels this Purchase Order, in whole or in part, at any time after Seller has commenced procurement of goods and supplies necessary for production of the Materials and/or has commenced production of the Materials, Seller’s remedy shall be as follows: Seller shall make best efforts to re-allocate such goods and supplies, and such Materials as have been produced, to other orders by Purchaser, and may invoice Purchaser for such goods and supplies and such Materials as have been produced that cannot be so re-allocated, plus a fee for overhead and profits, known as a processing fee which will not exceed ten percent (10%).

5. The Total Purchase Price is the full price payable to Seller, including but not limited to all delivery charges, effective for the **Term** of the Purchase Order with Payment Terms stated in this Purchase Order and in Exhibit E. The Total Purchase Price may be increased by Change Order to account for additional shipping costs actually incurred if at any time the Purchaser changes the physical location for the delivery of the Materials from the site location designated in this Purchase Order.
6. All terms and conditions set forth in this Purchase Order shall be incorporated into and form a part of any NTP issued by Purchaser and Sales Order issued by Seller, whether stated therein or not. Without need for Change Order, both the Purchase Order and Sales Order shall merge to become the amended contract between the parties subject to any subsequent Change Orders.
7. RISK OF LOSS AND INSURANCE.
 - a. Seller shall bear all risk of loss until the Material, items or good covering the individual shipment is delivered to the Project Site.
 - b. Seller shall include as a part of the Delivery Time Stamp Documents a certification of insurance coverages as specified in Exhibit F.
8. PROMPTNESS AND DELIVERY. The Materials will be delivered in accordance with the Delivery Window date and location specified in the Sales Order (“**Delivery**”) and in compliance with the Work Warranty. Completion of Delivery means completion of all Delivery requirements set forth in this Purchase Order and provision to Purchaser of a complete Operations and Maintenance Manual for all Materials. Purchaser may from time to time and in its sole discretion change, in writing, Delivery instructions or direct that shipments be temporarily suspended with such changes becoming binding upon Seller immediately upon receipt by Seller of the changed instructions or suspension notice. Seller shall make no commitments for goods or supplies or for production arrangements in excess of the amount necessary to comply with the Purchaser’s Delivery instructions. Any additional costs actually incurred by Seller for Delivery changes shall be paid by Purchaser and Seller shall be entitled to an equitable extension of the Delivery Window caused by the Delivery changes. If the Delivery Window is delayed more than three (3) weeks from original Delivery Window, then Purchaser shall provide an alternate location to deliver Materials.
9. MODIFICATIONS. The terms, instructions and conditions in the Purchase Order and Sales Order (and any attachments hereto or thereto signed by both the Parties) constitute the entire agreement between the Parties hereto and any modification thereof to be valid must be in a written Change Order signed by the Purchaser’s and Seller’s authorized representative. Any: (i) significant changes to the conditions of the Project Site, the Specifications, or design requirements provided by Purchaser, (ii) different standards, specification or design requirement changed or mandated by the Owner or Purchaser, or (iii) any subsurface conditions that could not have been anticipated by Seller through reasonable due diligence and professional standards, will entitle Seller to a Change Order modifying the Delivery Window and cost of the Materials. The increase or decrease in the Total Purchase Price to be agreed upon between the Parties. The receipt by Purchaser of any quotation, form, sales confirmation or other document or instrument from Seller shall not, in the absence of a written acknowledgement by Purchaser expressly agreeing to same, have the effect of changing in any manner or adding to the terms and conditions of the Purchase Order or Sales Order. In the event Seller and Purchaser cannot agree on the cost impact to the Materials of any Change Order, Purchaser will advance half of the disputed amount associated with the Change Order prior to implementing the change. The remaining disputed amount will be agreed upon between the Parties at the conclusion of the Project.
10. TAXES. Purchaser shall provide Seller all tax exemption documentation required by Seller and Seller shall charge Purchaser sales tax unless Purchaser provides Seller with evidence of tax exemption applicable to the relevant governmental authority to which the sales tax otherwise would be payable. Purchaser agrees to provide to Seller such documentation as Seller may reasonably require to confirm such tax exemption.
11. PURCHASER’S INDEMNITY. Without limitation of any other right or remedy available to Purchaser, Seller shall protect, defend, indemnify and hold Purchaser harmless from and against any and all claims, losses, damages, liabilities,

finest, penalties, costs and expenses (including but not limited to attorneys' fees) directly or indirectly arising out of or resulting from : (i) personal injury, death or property damages resulting from Seller's refusal or failure to perform or defective performance, or otherwise to observe any of Seller's agreements, undertakings warranties or obligations under this Agreement, except to the extent limited by the liquidated damages provisions of Article 16 and 17 below, and (ii) any actual or alleged injury or death to any person or any physical damage to any property in any manner arising out of or incident to or claimed to arise out of misconduct of Seller resulting from its activities under this Purchase Order. Seller and Purchaser acknowledge that ten Dollars (\$10) of the amount Purchaser pays to Seller pursuant to this Purchase Order has been paid in consideration of Seller agreeing to the defense, indemnity, and hold harmless obligations herein.

12. SELLER'S INDEMNITY. Purchaser agrees to indemnify, defend and hold harmless Seller from any physical damage to property of third parties or injury to persons, including death, to the extent resulting directly from the negligence, fraud or misconduct of Purchaser or its affiliates, officers, servants, agents, employees, and/or assigns resulting from its activities under this Purchase Order.
13. ASSIGNMENT. No right or obligation of Seller may be assigned without the prior written consent of Purchaser, which Purchaser shall be under no obligation, express or implied, to grant. Purchaser shall notify Seller at least thirty (30) days prior to Assignment and has the right to assign this Purchase Order and any rights arising hereunder to any third party ("**Assignee**") without the necessity of obtaining the approval of the Seller; however, if Purchaser is in default of any payment obligations under this Agreement or a NTP or Sales Order, then Seller will have the right to demand payment prior to any Assignment being effectuated and legally binding. The warranty rights of Purchaser and warranty obligations of Seller pursuant to Section 16, will be automatically transferred to the Owner or any other designee that Purchase designates upon completion of this Purchase Order and transfer of the Project Site to Owner. The warranty will be effective for the remainder of the original warranty period. This assignment will be void and of no force or effect in the event that Seller is still owed payment under the terms of the Purchase Order. No other provisions, rights, remedies, or obligations, other than the Section 16 warranty obligation of Seller will be assigned under this automatic assignment clause.
14. COMPLIANCE WITH LAWS. Seller (and the Materials to be furnished hereunder) shall comply with all applicable federal, state and local laws and with all applicable rules, regulations and orders issued thereunder. Seller shall provide Purchaser with such certificates of compliance with any applicable federal, state and local laws, ordinance, rules, regulations and orders as Purchaser may from time to time request.
15. PURCHASER'S DEFAULT. In the event of default by Purchaser or its Assignee, Seller shall provide a minimum of thirty (30) days written notice to Purchaser and Assignee of the default and Purchaser and Assignee shall have the opportunity within such thirty (30) days, or such longer period of time as may in the exercise of due diligence reasonably be required or as may be mutually agreed, to cure any such default before Seller takes any further action with respect to such default. Any payment not made when due under the terms of this Purchase Order shall incur finance charges in the amount of one percent (1%) monthly. In the event of default by Purchaser in its payment obligations, Seller has the right to cease performance of the Work or Materials, and withhold shipments for the Project until payment is received. Seller shall be entitled to a day for day extension of the Delivery Window for each day performance is suspended for nonpayment default.
16. WARRANTIES, FAILURE OF PERFORMANCE AND REMEDIES:
 - a. For the entire duration of the Work Warranty Period, all Materials provided by Seller shall be in compliance with Good Solar Practices. "**Good Solar Practices**" shall mean the practices, methods, standards of care, skill, safety procedures and diligence, engaged in or approved, during the relevant time period, for the design, engineering, procurement, start-up, testing and commissioning of solar energy generating facilities of a comparable type and complexity to the Project. Good Solar Industry Practice is not intended to require the optimum practice, method or act to the exclusion of all others, but rather to include the practices, methods, standards of care, skill, safety procedures and diligence generally accepted in the industry. For the duration of the Warranty Period all Materials provided by Seller shall be (i) free from defects in design, materials, factory assembly, and workmanship, be new, unused, and undamaged when Delivered; (ii) in compliance with all requirements of this Purchase Order; and (iii) in compliance with all applicable local, state,

and national building codes and meeting all standards and minimum requirements set forth in the Purchase Order or Specifications, and (iv) will be suitable for use under the operating conditions set forth in the Specifications and (v) will perform to the operating standards set forth in the Specifications (collectively “**Work Warranty**”). Any Materials which do not comply with the Work Warranty shall be deemed “**Non-Conforming Materials**.” This warranty does not apply to galvanizing or protective coatings applied to steel; the warranty applicable to those components is set forth in Section 16(j), below.

- b. “**Operations and Maintenance Manual**” means a written manual for the operation and maintenance of the Materials, which manual for each Project includes the following information: necessary technical documents that enable the operating personnel to start-up, operate, and shut down the Materials; necessary documents required for all maintenance requirements of the Materials including but not limited to non-proprietary technical information; necessary drawings and diagrams for the appropriate use of the Materials, such as piping and instrumentation diagrams, electrical one line diagrams, “as built” drawings, etc., for each system of the Project, the final “as built” plans and line diagram drawings, complete equipment specification sheets, all the warranty information for the Materials, Material safety data sheets, applicable health and safety documentation, specific maintenance schedules required to comply with the Work Warranty, testing and commissioning reports, a recommended spare parts list, and control configuration and process flow diagrams for each system of the Project; and any other information or data necessary to operate and maintain the Materials in accordance with good solar industry practices. The Operations and Maintenance Manual shall be provided in digital format compatible with instructions to be provided by Purchaser. Seller may, but is not required to, provide hard copy of any part or all of the Operations and Maintenance Manual in addition to the digital copy.
- c. The “**Work Warranty Period**” for the Seller shall commence on completion of Delivery of the entire lot of Materials ordered pursuant to this Purchase Order and receipt by Purchaser of the complete Operations and Maintenance Manual for all Materials, and continue for a period of five (5) years. This warranty does not apply to protective coatings applied to the Material, such as galvanizing. Provided, however, Seller warrants the supporting structural components from systemic collapse or failure that causes the Materials to be nonfunctional for the purpose of supporting solar panels, this warranty will expire ten (10) years after completion of Delivery..
- d. Upon Delivery of the Materials to the Project, Purchaser shall inspect the Materials to determine apparent or obvious damage or nonconformity (“**Apparent Defect**”). Materials with an Apparent Defect are Non-Conforming Materials. Purchaser shall report to Seller within five (5) days following Delivery any Apparent Defect or any other defect or nonconformity discovered. Seller shall not be deemed to have satisfied its Delivery requirements until all defects and non-conformities reported by Purchaser within such five (5) day period have been remedied as provided below. If Purchaser does not notify Seller in writing within this inspection period that Seller provided Nonconforming Materials, then the Materials will be deemed delivered, however this provision will not waive or alter any warranty rights or remedies afforded to Purchaser hereunder.
- e. Purchaser without limitation of any other right or remedy Purchaser may have, may reject, in whole or in part, any Non-Conforming Materials by issuing a Rejection Notice within five (5) working days of the receipt of the Materials and may require Seller to repair or replace such Non-Conforming Materials at Seller’s expense.
- f. Intentionally Omitted.
- g. If at any time during the Work Warranty Period Purchaser discovers any failure of the Materials to comply with the Work Warranty, Purchaser shall deliver written notice to Seller of the non-conformity and Seller shall immediately commence the repair, replacement, and/or correction of the designated Materials within five (5) days thereafter, including, where required, any reengineering or redesign and repair to or replacement of any other goods or equipment of which the Non-Conforming Materials are a part which fail as a result of the Non-Conforming Goods. All costs incidental to Seller’s performance of its warranty obligations shall be borne by Seller, including but not limited to the removal, replacement and reinstallation of all equipment and materials necessary to gain access to the Non-Conforming Materials. Should Seller fail to complete such necessary repairs, replacement, or correction within thirty (30) days of notice of a warranty claim, or to pursue such remedy diligently thereafter if correction cannot reasonably be accomplished within thirty (30) days, Purchaser shall have

the right, after giving Seller notice of its intent to do so, perform such repair, replacement or correction; and Seller shall be liable for all reasonable direct costs, charges and expenses incurred by Purchaser in connection with such repair or replacement and upon review of the invoices and agreement by Seller upon the reasonableness of the charges, shall forthwith pay to Purchaser an amount equal to such direct costs, charges and expenses. Repair and replacement by the Seller, and Seller paying for, or bearing the costs enumerated in this Section 16(g) is the sole and exclusive remedy available to Seller for a breach of the warranties in Section 16.

- h. If during the Work Warranty Period Purchaser discovers or substantial evidence indicates an identical defect exists which affects twenty-five percent (25%) or more of the same component or element of the Materials on any Project (“**Serial Defect**”), Purchaser shall give written notice to Seller of such belief. Following receipt of Purchaser’s notice, Seller shall promptly examine the applicable components in order to determine whether the defect is a Serial Defect, and shall give written notice to Purchaser of its final determination as promptly as permissible in the exercise of due diligence. If the person or entity for whom or for which Purchaser is building the Project (“**Owner**”) does not accept the conclusion of the Seller, Seller shall cooperate with Purchaser in attempting to resolve the dispute with the Owner. If Seller agrees that the condition is a Serial Defect, or it subsequently is established to be a Serial Defect, Seller shall (i) repair or replace the affected component and all components identified on all Projects which are susceptible to the same defect, regardless of whether or not such component has exhibited the defect in question; (ii) in the case of a defect in design, formulate a reasonable remedy (e.g. repair, replacement, retrofit or otherwise) that resolves both the cause and the effect of the design defect, and, upon review and approval by Owner implement such remedy at Seller's sole cost. If Seller can demonstrate to Owner’s reasonable satisfaction that a Serial Defect is limited to a specific manufacturing batch or component manufacturer, Seller’s obligation to repair or replace the affected component shall be limited to the components in such manufacturing batch or made by such manufacturer. In the case of a defect resulting solely from poor or improper installation by Purchaser, Purchaser shall be responsible for all remediation.
- i. Seller hereby agrees upon completion of Delivery to assign to the Owner or such other person or entity as may be directed at any time by Purchaser all warranties provided herein, that Purchaser may act on behalf of such assignee to enforce all warranty rights during the Work Warranty Period, and that such assignee may make demand directly upon Seller to honor Seller’s Work Warranty.
- j. **LIMITED EXPRESS WARRANTY COATINGS APPLIED TO STRUCTURAL COMPONENTS AND MOTORIZED CONTROLLER ASSEMBLY** - Any protective coatings applied by Seller to support structures, and the motorized controller assembly is warranted against systemic failure for a period of three (3) years after shipment. This warranty does not apply to normal chips, corrosion, delamination or coating failures that are normal and consistent for the Materials and industry standards.
- k. Seller is not responsible for warranty claims arising from (a) damage to any Materials to the extent such damage is caused by (1) failure to operate and maintain such equipment in accordance with the Operations and Maintenance Manual; or (2) by any Force Majeure Event; or (3) by any alterations, repairs or modification made to the Materials by a person or entity other than Seller or a person or entity acting at the direction of Seller, except as such modification is made in accordance with manuals or materials furnished by Seller and in accordance with Good Solar Industry Practices; and (4) warranty claims caused by conditions in excess of the operating conditions and loading set forth in the Specifications, and (5) normal operating consumables or items that require replacement due to normal wear and tear or casualty loss (other than as a result of a failure under the Work Warranty). A “**Force Majeure Event**” means any act or event (to the extent not caused by Seller or its agents or employees) which is, despite the exercise of reasonable efforts, unforeseeable, unavoidable and outside the control of Seller, and which renders Seller unable to comply totally or partially with its obligations under this Agreement. Notwithstanding the foregoing, Force Majeure Events shall expressly not include the following: (i) mechanical or equipment failures (except to the extent any such failure is itself caused by an event that would otherwise qualify as a Force Majeure Event); and labor strikes or other labor difficulties that are specific to Contractor’s or any Subcontractor’s personnel.
- l. **THE FOREGOING WARRANTIES ARE THE ONLY WARRANTIES GIVEN BY SUPPLIER, AND SUPPLIER HEREBY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED**

WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, WHETHER ARISING FROM STATUTE, COMMON LAW, CUSTOM, COURSE OF DEALING, USAGE OF TRADE, OR OTHERWISE.

17. Without limitation of any other right or remedy available to Purchaser, if at any time there shall be evidence of a lien or claim for which the Purchaser might become liable or suffer loss which is chargeable to any labor, services or materials for which Purchaser has made payment to Seller, and if Seller fails to cure such lien within five (5) days of written notice, then the Purchaser shall have the right to retain out of any payment otherwise due Seller the amount to defend and indemnify the Purchaser against such claim or lien, including but not limited to attorneys' fees, court costs, expert witness fees and expenses, and all other costs reasonably and customarily associated with litigation. If sufficient amounts to indemnify Purchaser do not remain due Seller to offset the amount due Purchaser, then Seller shall promptly make payment thereof to Purchaser upon receipt of Purchaser's invoice for such amount. This Article 18 shall not waive or abrogate Seller's right to file a lien for non-payment by Purchaser of amounts due under this Purchase Order.

18. PURCHASE ORDER EXHIBITS.

Exhibit	DOCUMENT TYPE
A	Limited Notice to Proceed
B	Notice to Proceed
C	Application and Certificate for Payment
D	Interim Waiver and Release of Liens
E	Payment Schedule
F	Insurance Requirements

19. MISCELLANEOUS This Purchase Order shall be governed by the laws of the Commonwealth of Virginia. In the event of any dispute between the Parties, Seller consents to exclusive jurisdiction and venue in the state courts of Fairfax County, Virginia. If any term or condition of the Purchase Order shall be held invalid or unenforceable, the remainder of this Purchase Order shall continue valid and enforceable to the fullest extent permitted by law. All provisions of this Purchase Order, which by their terms may require performance after termination or cancellation, shall survive any such termination or cancellation.

20. WAIVER OF CONSEQUENTIAL DAMAGES AND LIMITATION OF LIABILITY TO INSURANCE COVERAGES.

a. NEITHER PARTY, OR ITS OR THEIR SHAREHOLDERS, EMPLOYEES, OR AGENTS, SHALL BE LIABLE TO THE OTHER PARTY OR ANY OTHER PERSON CLAIMING BY OR THROUGH A PARTY TO THIS AGREEMENT, FOR ANY SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE, SPECIAL OR CONSEQUENTIAL LOSSES, DAMAGES, COSTS OR EXPENSES, WHETHER SUCH LOSSES, DAMAGES, COSTS OR EXPENSES ARE BASED ON CLAIMS FOR BREACH OF CONTRACT, BREACH OF WARRANTY, STRICT LIABILITY, OR OTHERWISE, ARISING OR RESULTING FROM THE PERFORMANCE, NONPERFORMANCE OR DELAY IN PERFORMANCE OF ANY PARTY'S OBLIGATIONS UNDER THE AGREEMENT DOCUMENTS.

b. Limit of Liability. Purchaser's liability to Seller, and Seller's liability to Purchaser, for all claims, causes of actions, and occurrences arising out of or related to this Purchase Order, any Sales Order, any LNTP, or any NTP that is covered by the insurance types and coverages provided in Exhibit F will be limited to the greater of the amounts and types of insurance coverages listed in Exhibit F for the amount of the Total Purchase Price. In the event the claim, liability, or cause of action is not covered by insurance, then each Party's liability will be limited to the amount of the Total Purchase Price. This limit applies regardless of the cause of action or theory of recovery and includes any claims or causes of actions in negligence, tort, contract, at law or equity.

Purchaser - Evergreen Renewables, LLC	Date
NAME/TITLE	SIGNATURE

Seller / Supplier	Date
NAME/TITLE	SIGNATURE

Exhibit A – Limited Notice to Proceed

Limited Notice to Proceed

To: Maddox Industrial Transformer, LLC.

From: Evergreen Renewables LLC

Project Name: Emmanuel Church Project

Notice to Proceed Date: 5/21/2025

This is your notice to proceed with the following Project(s):

Emmanuel Church Project

in accordance with your Purchase Order dated 5/21/2025. One copy of the executed Purchase Order is enclosed for your files and is applicable to all Projects identified above.

Upon receipt of the First Deposit the Seller shall begin compiling layout and assembly drawings, shop drawings and engineering drawings (collectively "Drawings"), and a Sales Order, for each of the Projects identified above. Seller shall deliver the Drawings for each designated Project to the Purchaser for approval within twelve (12) business days following receipt of the First Deposit.

SIGN AND PROVIDED

By: _____

Title: _____

Date: _____

RECEIVED AND ACKNOWLEDGED

By: _____

Title: _____

Date: _____

Exhibit B - Notice To Proceed Form

NOTICE TO PROCEED

To: Maddox Industrial Transformer, LLC.

From: Evergreen Renewables LLC

Project Name: Emmanuel Church Project

Notice to Proceed Date:

Delivery Date:

Pursuant to the terms and subject to the conditions of the Purchase Order Dated 5/21/2025, Maddox Industrial Transformer, LLC is hereby released to commence the Work for the Project identified above as defined in the Purchase Order. The notice to Proceed Date shall be noted and defined as the date set forth above, and the Delivery Window shall be changed to the date set forth above. Both dates shall be changed and fully incorporated into the Purchase Order as set forth above.

SIGNED AND PROVIDED

By: _____

Title: _____

Date: _____

RECEIVED AND ACKNOWLEDGED BY

By: _____

Title: _____

Date: _____

Exhibit C – Payment Application Form

VENDOR APPLICATION FOR PAYMENT

PAGE ONE OF 2 PAGES

TO : E.S.S. LLC

PROJECT: TBD

APPLICATION NO. 1

APPLICATION DATE: 1/1/2020

PERIOD TO: 1/1/2020

FROM : Vendor

VIA: Email

PROJECT NO: 0

PO ORDER NUMBER:

PURCHASE ORDER DATE: 1/1/2020

VENDORS APPLICATION FOR PAYMENT

CHANGE ORDER SUMMARY			
Change Orders approved in previously by Purchaser		ADDITIONS	DEDUCTIONS
TOTAL			
Approved this Month			
Number	Date Approved		
TOTALS		0.00	0.00
Net Change by Orders		0.00	

1 ORIGINAL CONTRACT SUM.	\$	0.00
2 NET CHANGE BY CHANGE ORDERS	\$	0.00
3 CONTRACT SUM TO DATE	\$	0.00
4 TOTAL BILLED TO DATE	\$	0.00
5 LESS PREVIOUS CERTIFICATES FOR		
6 PAYMENT (Line 6 from prior Certificate) ...	\$	0.00
7 CURRENT PAYMENT DUE	\$	0.00
8 BALANCE TO FINISH	\$	0.00

VENDOR:

SIGNED BY:

DATE:

CONTINUATION SHEET

VENDOR APPLICATION FOR PAYMENT

PAGE TWO OF 2 PAGES

APPLICATION NUMBER: 1

APPLICATION DATE: 1/1/2020

PERIOD TO: 1/1/2020

PROJECT NO: 0

A	B	C	D	E	F	G
ITEM NO.	DESCRIPTION OF WORK	SCHEDULED VALUE	WORK COMPLETED		TOTAL MILESTONES BILLED TO DATE	BALANCE TO FINISH
			FROM PREVIOUS APPLICATIONS	THIS PERIOD		
01	LNTP	0.00	0.00	0.00	0.00	0.00
02	NTP	0.00	0.00	0.00	0.00	0.00
03	SHIPPING	0.00	0.00	0.00	0.00	0.00
04	RETAINAGE	0.00	0.00	0.00	0.00	0.00
		0.00	0.00	0.00	0.00	0.00

Exhibit E – Payment Requirements

1. Payment Schedule

Milestone	Contract %	Terms
Order of Materials	25%	First Deposit
Prior to shipment	75%	Net 30

2. Documents Required as Condition Precedent to Payment:

Seller shall provide lien waivers in form acceptable to Purchaser prior to issuance of payment by Purchaser to Seller. Seller shall provide such documents and certifications as Purchaser may reasonably require to confirm that the Milestone for which payment is requested has been achieved.

Exhibit F – Insurance Requirement



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

11/20/2019

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER	CONTACT NAME: Trai McCabe PHONE (A/C, No, Ext): (321) 757-8686 FAX (A/C, No): (321) 757-8687 E-MAIL ADDRESS:	
INSURED	INSURER(S) AFFORDING COVERAGE	
	INSURER A :	
	INSURER B :	
	INSURER C :	
	INSURER D :	
	INSURER E :	

COVERAGES

CERTIFICATE NUMBER: 19-20 MASTER

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR	Y	Y	6023698580	03/01/2019	03/01/2020	EACH OCCURRENCE \$ 1,000,000
	☐ GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PRO-JECT ☐ LOC OTHER:						DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 100,000
							MED EXP (Any one person) \$ 15,000
							PERSONAL & ADV INJURY \$ 1,000,000
B	☒ AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ONLY ☐ NON-OWNED AUTOS ONLY	Y	Y	BUA 4033009936	03/01/2019	03/01/2020	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000
							BODILY INJURY (Per person) \$
							BODILY INJURY (Per accident) \$
							PROPERTY DAMAGE (Per accident) \$
C	☒ UMBRELLA LIAB ☐ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE ☐ DED ☒ RETENTION \$ 10,000			CUE 6071861499	03/01/2019	03/01/2020	COMBINED SINGLE LIMIT (Ea accident) \$ 10,000,000
							EACH OCCURRENCE \$ 10,000,000
							AGGREGATE \$
D	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	N/A	Y	WC6018635918	04/27/2019	04/27/2020	☒ PER STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$ 1,000,000
							E.L. DISEASE - EA EMPLOYEE \$ 1,000,000
							E.L. DISEASE - POLICY LIMIT \$ 1,000,000
							Aggregate 2,000,000
E	Pollution Liability Errors & Omissions			C6016454921	03/01/2019	03/01/2020	Each Occurrence 1,000,000
							E&O - \$10K Retention 2,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Certificate holder is listed as an Additional Insured with regards to General Liability per forms CG 1010 11/85 or its equivalent, CG 1010 10/01 and CG 2037 10/01; and Auto Liability as per written contract. Coverage is primary and non-contributory in favor of certificate holder. A Waiver of Subrogation is in favor of certificate holder for General Liability, Auto Liability and Workers' Compensation.

CERTIFICATE HOLDER

CANCELLATION

E.S.S. LLC d/b/a Evergreen Solar Services	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.
	AUTHORIZED REPRESENTATIVE

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ACORD 25 (2016/03)

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Q U O T A T I O N

No: 20 WS-476231

Quoted By:
AMERICAN STEEL / LAMPROS STEEL
525 S. SEQUOIA PARKWAY
CANBY, OR 97013
Tel: 503-651-6700 Fax: 503 651-1525

Quoted To: (224835)
EVERGREEN RENEWABLES LLC
***** SCAN *****
100 SPECTRUM CENTER DR
SUITE 1030
IRVINE, CA 92618

Quoted Ship To: (1)
EVERGREEN RENEWABLES
**** WILL CALL LAMPROS ****
PORTLAND, OR 97203

Trm PAID IN ADVANCE BY CREDIT CARD Qtd 12Aug25 Qte Ref
Frt CUSTOMER PICKUP Via FOB
Tel 619-458-8674 Fax Ctc
Slp EVAN LEWIS

Q U O T A T I O N

QT No: 20 WS-476231

Test Certs: Chem-Y Phys-Y 1 Original copies with Shipment, 0 with Invoice

***** CUSTOMER PAID FOR ORDER IN ADVANCE *****

1 HR WIDE FLANGE BEAM ASTM A992 W6 X 9.0 (3.940 X .170) X 40' ***** SAW TO 8 @ 8' TOL +/- 1/8 ***** BEAM GALVANIZED AFTER CUTTING MATERIAL	2 PCS	720 LBS
	1,155.0000 LOT	1,155.00
2 HR WIDE FLANGE BEAM ASTM A992 W8 X 15.0 (4.015 X .245) X 40' ***** SAW TO 4 @ 8' TOL +/- 1/8 ***** BEAMS GALVANIZED AFTER CUTTING MATERIAL	1 PCS	600 LBS
	980.0000 LOT	980.00
3 HR WIDE FLANGE BEAM ASTM A992 W8 X 15.0 (4.015 X .245) X 40' ***** SAW TO 12 @ 10' TOL +/- 1/8 ***** BEAMS GALVANIZED AFTER CUTTING MATERIAL	3 PCS	1800 LBS
	3,180.0000 LOT	3,180.00

Q U O T A T I O N

No: 20 WS-476231

Quoted By:
AMERICAN STEEL / LAMPROS STEEL
525 S. SEQUOIA PARKWAY
CANBY, OR 97013
Tel: 503-651-6700 Fax: 503 651-1525

Quoted To: (224835)
EVERGREEN RENEWABLES LLC

Quoted Ship To: (1)
EVERGREEN RENEWABLES

Q U O T A T I O N				QT No: 20	WS-476231
4	HR WIDE FLANGE BEAM ASTM A992			2 PCS	600 LBS
	W8 X 15.0 (4.015 X .245) X 20'				

	CUT TO				
	2 @ 20'				
	TOL +/- 1/8				

	BEAMS GALVANIZED AFTER CUTTING				
	MATERIAL	1,040.0000	LOT		1,040.00
5	HR CARBON STEEL PLATE-PLS ASTM-A-36			4 PCS	1634 LBS
	1/4" X 48.0000" X 120.0000"				
	MATERIAL	4 PCS @	290.0000	EA	1,160.00

PAID IN ADVANCE WITH CREDIT CARD ON FILE

QUOTES SUBJECT TO AVAILABILITY & MILL INCREASES

** FUEL SURCHARGE EFFECTIVE 4/01/22**

*** \$.65 CWT OR \$30.00 MINIMUM PER DELIVERY ***

Starting March 1, 2020 All Oregon invoices will include a surcharge for the CAT tax implemented by the Legislature

Credit Card Payments: Major credit cards are accepted for your convenience. Please note that beginning March 1, 2024, all credit card transactions will include a 2.8% surcharge.

ACH Payments: American Metals Corporation supports electronic (ACH) payments as an alternate source for safe transactions. If you are interested in setting up ACH payments, please contact us for our banking information.

Order Totals:				5 Items	5354 LBS
Material	Processing	Freight	Other	Taxes	ORDER AMT
7,515.00					7,515.00 \$
